

Access to Employee Medical Records

PURPOSE

The purpose of this safety policy and procedure is to establish the guidelines and procedures through which employees will be able to obtain and gain access to **Sentry Wellhead Systems**, hereafter referred to as "The Company," maintained exposure and medical records. These exposure and medical records are those resulting from employment related exposures, injuries, and/or illnesses.

Employees may be exposed to toxic substances and harmful physical agents to an extent that may severely impair their health. Workers must be informed about the toxic exposures they face and their potential health effects. This safety policy and procedure provides guidelines for employees to obtain their exposure and medical records. It includes provisions on training, retention requirements for employee exposure and medical records, and response time to employee requests for exposure and medical records. Additionally, guidelines are presented on physician review of employee medical records, OSHA access to medical records, and information that must be shared with new employees.

RESPONSIBILITIES

It is the general responsibility of The Company to ensure that each employee has access to all exposure and medical records pertaining to their present or past employment with The Company. This chapter provides definitions, establishes general provisions, and identifies responsibilities regarding access to employee exposure and medical records.

Managers/Unit Heads

Managers/Unit Heads are responsible for:

- Maintaining employees' exposure and medical records.
- Ensuring compliance with this safety policy and procedure.
- Providing employees with copies of their exposure and medical records when properly requested.
- Ensure the confidentiality of employees' medical records.

Supervisors

Supervisors will be responsible for educating and training employees about their rights under this safety policy and procedure.

Employees

Exposure and medical records may be kept in an employee's personnel files, in a physician's office, or contained within claim files such as "Workers' Compensation."

Safety Department

Safety and Loss Control will provide:

- Prompt assistance to managers/unit heads or others on any matter concerning this safety policy and procedure.
- Assist in developing or securing required training for the effective implementation of this safety policy and procedure.
- Provide consultative and audit assistance to ensure effective implementation of this safety policy and procedure.

POLICY

The Company will provide all exposure and medical records when properly requested as outlined in this safety policy and procedure.

The Company will ensure that those employees who request their exposure and medical records are provided with confidential, fair, and equal treatment.

ACCESS TO MEDICAL RECORDS

An Employee Medical Record is a record concerning the health status of an employee which is made or maintained by a physician, nurse, or other health care personnel or technician.

Whenever an employee or a designated representative of an employee requests access to exposure and/or medical records, The Company will provide these documents within 15 working days. If records cannot be provided within this period, the employee or representative must be informed and given a date on which the records will be provided along with a reason for the delay. These records will be provided to the employee or representative at no cost for reproduction or for the document search itself.

Whenever access is requested to an analysis that reports the contents of employee medical records by either direct identifier (name, address, social security number, payroll number, etc.) or by information that could reasonably be used under the circumstances indirectly to identify specific employees (exact age, height, weight, race, sex, date of initial employment, job title, etc.), personal identifiers must be removed before access is provided.

HIPAA

Access to employee medical records does not violate HIPAA (Health Insurance Portability and Accountability Act) privacy as it allows access to occupational medical records under specific guidelines outlined in this policy. The policy is not intended to affect existing:

- Legal and ethical obligations concerning the maintenance and confidentiality of employee medical information

- The duty to disclose information to a patient/employee, any other aspect of the medical-care relationship,
- Affect existing legal obligations concerning the protection of trade secret information.

Regulations standardized by HIPAA include the patient's right to make certain amendments to their personal medical records. Patients make requests to amend information pertaining to their medical records with which they disagree. Patients are permitted to submit a written statement of disagreement to request a formal amendment.

EMPLOYEE EXPOSURE AND MEDICAL RECORDS

Upon request, The Company must provide the employee or employee's designated representative access to employee exposure records. If no records exist, the employer must provide records of other employees with job duties like those of the employee. Access to exposure records does not require the written consent of the other employees.

In addition, these exposure records must indicate the identity, amount, and nature of the toxic substances or harmful physical agents to which the employee has been exposed. The Company also must provide employees and their designated representatives access to employee medical records. Access to the medical records of another employee may be provided only with the written consent of that employee. A request for medical records can be made by using the form (or one similar) shown in this chapter.

The Company is responsible for maintaining employee medical records for the duration of employment plus 30 years. This recordkeeping does not include health insurance claims, first aid records (not including medical histories) of one-time treatment, and medical records of employees who have worked less than a year for The Company. Employee exposure records and data analysis shall be maintained for the duration of employment plus 30 years. It is the responsibility of the employee to initiate any request for access to his or her medical records as outlined in this safety policy and procedure.

If, for any reason, The Company shall cease to do business, The Company shall transfer all records subject to this section to the successor employer. If, The Company ceases to do business and there is no successor employer to receive and maintain the records, and The Company intends to dispose of any records required to be preserved for at least thirty (30) years, the employer shall notify the affected current employees of their rights of access to records at least three (3) months before the cessation of The Company business.

ENVIRONMENTAL AND BIOLOGICAL MONITORING

To maintain accurate records of exposure, The Company shall set in place environmental (workplace) monitoring and measuring of all toxic substances or harmful physical agents, including personal, area, grab, wipe, or other forms of sampling as well as related collection and analytical methodologies, calculations, and other background data relevant to interpretation of the results obtained.

Biological monitoring results that directly assess the absorption of a toxic substance or harmful physical agent by body systems (e.g., the level of a chemical in the blood, urine, breath, hair, fingernails, etc.) but not include results that assess the biological effect of a substance or agent, or which assess an employee's use of alcohol or drugs. Both environmental and biological monitoring records shall be included in employee exposure records.

REPRESENTATION BY A PHYSICIAN

The Company may request that a physician be appointed to review medical records with the employee or the employee's designated representative to ensure records are reviewed and properly interpreted. The physician may deny the employee access to records if the physician detects a situation that may be detrimental to the health of the employee such as the identification of terminal illness or a psychiatric condition. In such cases, the employee's designated representative may request the records even if it is known that the representative may disclose the information to the employee.

Upon receiving a written request from OSHA, The Company will supply OSHA with:

- Any exposure or medical records for analysis
- A copy of this request must be posted in a conspicuous place for at least 15 working days; and
- Access to records shall be provided within a reasonable time, place, and manner.

If access to records cannot be provided within fifteen (15) working days, The Company shall within the fifteen (15) working days apprise the employee or designated representative requesting the record of the reason for the delay and the earliest date when the record can be made available.

NEW EMPLOYEE NOTIFICATION

Upon a person first entering employment and at least annually thereafter, information of the existence, location, and availability of the person responsible for maintaining and providing access to records shall be made available. Individual employee's rights of access to these records must be given to all current employees.

New Company employees will be informed of the following information:

- The existence, location, and availability of any records covered by this safety policy and procedure.
- The contents of the program, the recordkeeping requirements of the OSHA
- The person responsible for maintaining and providing access to these records.
- Employee's rights under this safety policy and procedure.

DEFINITIONS

Access - The right and opportunity to examine, copy, or use any or all exposure and medical records.

Designated Representative - Any individual or organization to whom an employee gives written authorization to exercise a right of access to exposure or medical records.

Employee - An individual who is employed by The Company and who is being assigned or transferred to work where there will be exposure to toxic substances or harmful physical agents. In a case where the employee is deceased, the employee's legal representative may directly exercise all the employee's rights under this policy.

Employee Exposure Record - A record containing information regarding an employee's health and that those medical records must be maintained by a physician, nurse, other health care professional, or technician.

Employee Medical Record – A record concerning the health status of an employee which is made or maintained by a physician, nurse, or other health care personnel or technician.

Exposure - A condition that occurs when an employee is subjected to toxic or hazardous environments because of his or her job duties.

Health Professional - A physician, occupational health nurse, industrial hygienist, toxicologist, or epidemiologist providing medical care or other occupational health services to exposed employees.

Record - Any item, collection, or grouping of information regardless of the form or process by which it is maintained.

Toxic Substance - Any chemical substance, biological agent (bacteria, virus, etc.), or physical stress (noise, heat, cold, vibration, etc.) to which employees could have been exposed because of performing their job function.

EMPLOYEE REQUEST FOR ACCESS TO MEDICAL RECORDS

I, _____, hereby request access to any employment-related medical records, maintained on my behalf, by **Sentry Wellhead Systems**. This request, (unless specifically noted below*), includes all employment-related medical records maintained by **Sentry Wellhead Systems**, and/or any private health care provider records for which **Sentry Wellhead Systems** has knowledge and possession. I acknowledge that this request pertains only to accessing employment-related medical records as detailed in **Sentry Wellhead Systems's** Safety Policy and Procedures.

*Specific Records Being Requested: _____

_____/_____/_____
Employee Signature Date Social Security Number

DESIGNATED REPRESENTATIVE CERTIFICATION

I, _____, certify that I am the designated representative for the above-named employee and that he/she has authorized me to obtain the medical records as indicated above. Please forward these records to my attention at the address below.

Representative Name Employee Acknowledgement

Representative Address Representative Signature

_____/_____/_____
City, State Zip Code Date

SUBMIT COMPLETED FORM TO YOUR MANAGER OR UNIT HEAD.